IT is hereby notified that the Minister of Justice, Legal and Parliamentary Affairs has, in terms of section 63 of the Legal Practitioners Act [*Chapter 27:07*], approved the following by-laws adopted by a majority of members present at a general meeting of the Law Society of Zimbabwe:—

Title

1. These by-laws may be cited as the Law Society of Zimbabwe (Conveyancing Fees) By-laws, 2024.

Tariff of conveyancing fees

2. The scale of fees to be taken by conveyancers in conveyancing matters shall be that set out in the Schedule and is to be paid in the currency of the transaction.

Value added tax to be charged and separately itemized

3. When billing a client for a conveyancing service specified in the Schedule the conveyancer shall add to the fee specified for that service, and itemize separately, an amount representing the current rate of value added tax fixed in terms of Chapter IV of the Finance Act [*Chapter 23:04*] in respect of the service concerned.

Repeals

4. The Law Society of Zimbabwe (Conveyancing Fees) By-laws, 2020, published in Statutory Instrument 28 of 2020, are repealed.

SCHEDULE *(Section 2)*

TARIFF OF FEES FOR CONVEYANCING

Notes:

1. The fees detailed in this tariff include such of the following work as may be necessary—
   (a) taking instructions;
   (b) drawing and preparation of deeds, powers of attorney, declarations, affidavits resolutions and other necessary documents;
   (c) perusals;
   (d) attending to payment of rates;

DISTRIBUTED BY VERITAS
e-mail: veritas@mango.zw; website: www.veritaszim.net
Veritas makes every effort to ensure the provision of reliable information,
but cannot take legal responsibility for information supplied.

(e) obtaining clearance or other certificates, save for capital gains clearance certificates and certificates of no present interest;

(f) obtaining endorsements and additionally, or alternatively, copies of documents from the office of the Master or other public office;

(g) obtaining conversions of area;

(h) making financial arrangements, including guarantees and settlement in terms thereof, and bank certified cheques;

(i) correspondence;

(j) arranging simultaneous lodging and registration with other conveyancers;

(k) all attendances at the Deeds Registry;

and all other work necessary for the registration and completion of the transaction concerned, but does not include work in connection with—

(i) the drawing and execution of suretyships, agreements of sale, deeds of donation, agreements of exchange, preliminary partition agreements and documents of a similar nature; or

(ii) any separate act of registration required in connection with the matter; or

(iii) the application for obtaining capital gains tax clearance certificates from Zimbabwe Revenue Authority, certificates of no present interest duly issued by the appropriate authority and exchange control approval duly issued by the appropriate authority; or

(iv) any other work for which a separate charge is provided in this tariff.

2. Where a transfer, mortgage bond or other matter referred to in this tariff is not proceeded with before registration and all documents have been prepared and all work has been substantially carried out to the point of lodging, the fee to be charged shall be 80 *per centum* of the tariff fee.

3. Where a transfer, mortgage bond or other matter referred to in this tariff is proceeding and all documents have been prepared and all work has been substantially carried out to the point of lodging, the conveyancer shall be entitled to 80 *per centum* of the tariff fee, subject to the continuing obligation to complete the registration. The conveyancer shall become entitled to the remaining 20 *per centum* upon said registration.

4. Where a power of attorney to pass bond has been prepared as security which incorporates the terms of the bond *in extenso* by annexure or otherwise, the fee to be charged shall be 30 *per centum* of the tariff fee. If a bond is subsequently registered on the authority of such power of attorney, the fee then to be charged shall be the tariff fee less 30 *per centum*.

5. In any other uncompleted matter, the fee to be charged shall be a fair and reasonable fee, regard being had to the general tariff of fees for legal practitioners, but shall not be less than 20 *per centum* and shall not exceed 30 *per centum* of the tariff fee.

SECTION 1

TRANSFER OF IMMOVABLE PROPERTY

Description	USD
1. For obtaining registration of immovable property in any manner not specifically referred to elsewhere in this tariff, the fee charged by the conveyancer shall be the amount as set out in column B of the Table to this tariff.	
If more than one property is included in the same transfer provided an additional fee for each property of	50
2. If the documents have to be completely or substantially redrawn as a result of inaccurate instructions having been given to the conveyancer for whatever reason, an additional fee of	50
Provided that a Deeds Registry search would not have provided the correct particulars.	

SECTION 2

Description	USD
Transfer of immovable property by endorsement in terms of the Deeds Registries Act [*Chapter 20:05*] or any other Act, where there is no change of beneficial interest or where no valuable consideration passes, if no specific provision is made for the transactions elsewhere in this tariff	120

SECTION 3

PARTITION OR RECTIFICATION TRANSFER

Description	USD
For each transfer	600
If more than one property is included in the same transfer, an additional fee for each property of	50

SECTION 4

CERTIFICATE OF TITLE

Description	USD
1. Certificates of title under sections 34, 35, 36, 38, 39 and 41 of the Deeds Registries Act [*Chapter 20:05*]	400
Plus 20 USD for each additional property after the first, where more than one property is included in the certificate.	
2. Certificate of consolidated title under section 40 of the Deeds Registries Act [*Chapter 20:05*]	400
Plus 20 USD for each additional constituent property after the first two properties.	

SECTION 5

BONDS

Description	USD
1. The fees charged for mortgage and notarial bonds shall be as set in column B of the Table to this tariff and shall be calculated on the amount of the debt secured by the bonds	
Provided that where, in respect of the same debt, a conveyancer draws a collateral or surety bond for simultaneous registration with a principal bond drawn by him, the fees for the collateral bond shall be one half of those for the principal bond with a minimum of	250
2. Except where the collateral bond is to be simultaneously registered in another registry, in which case the minimum fee shall be	300
If more than one property is included in the same bond, an additional fee for each additional property of	40
If the documents have to be completely or substantially Re-drawn as a result of inaccurate instructions having been given to the conveyancer for whatever reason, an additional fee of	40
Provided that a Deeds Registry search would not have provided the correct particulars.	

SECTION 6

CANCELLATIONS, CESSIONS, RELEASES, WAIVERS AND OTHER CONSENTS OF MORTGAGEES, LESSEES AND OTHERS

Description	USD
1. Cancellation of bonds, cancellations of cessions of bonds, reduction of capital or cover, releases of persons or property from a bond, waivers of preference, consents of mortgagees, usufructuary, lessees or other person required by law and not otherwise provided for in this tariff	75
Should more than one bond in favour of the same mortgagor be similarly dealt with at the same time, the fee for each additional bond shall be	20
Cession of bonds:	100
2. Should more than one bond in favour of the same mortgagor be similarly dealt with at the same time, the fee for each additional bond shall be	40
3. Where a bond has been lost and is to be cancelled or ceded there shall for each bond be an additional charge over and above the cost of cancellation of	100
Agreement or consent to variation of terms of bond	120

SECTION 7

MISCELLANEOUS

Description	USD
Attendances on behalf of transferor or transferee, mortgagor or mortgagee, supervising registration when conveyancing attended to by another conveyancer, including instruction, correspondence and other work relevant to such supervision	100
Save in relation to an endorsement of title under section 64 of the Deeds Registries Act [*Chapter 20:05*], fee shall be	75

SECTION 8

Description	USD
1. Endorsement of title under section 42 of the Deeds Registries Act [*Chapter 20:05*], or section 58 of the Administration of Estates Act [*Chapter 6:01*]	100
2. Endorsement of title under section 64 of the Deeds Registries Act [*Chapter 20:05*]	100
Where property is mortgaged, an additional fee of	50
3. Attending the Deeds Registry noting any act of Registration not otherwise provided for making searches	15
4. Endorsement of change of name or other rectification in terms of the Deeds Registries Act [*Chapter 20:05*]	100
Plus, 30 USD for each consent required other than the applicant's.	
5. Application for issue of a certified copy of a lost deed	100
6. Obtaining certified copy of a deed where no advertising required	50
7. Obtaining from Surveyor-General certified copy of approved diagram not yet annexed to a registered deed	75

SECTION 9

WHERE A PRINCIPAL CONVEYANCER INSTRUCTS A CORRESPONDING CONVEYANCER TO LODGE DOCUMENTS FOR REGISTRATION ON BEHALF OF THE PRINCIPAL

Description	USD
For attending to and finalising such lodging and registration, and all necessary attendances on behalf of the principal the fee shall be 20% of the fee charged by the instructing legal practitioner.	

SECTION 10

WORK NOT SPECIFIED ELSEWHERE OR WORK OF A COMPLEX NATURE

The fees for services not specified in this tariff or for services that are specified in this tariff but may include work of a sufficiently complex nature in a particular case shall be charged for under the general tariff of fees for legal practitioners, where appropriate, otherwise at the rates set out in the High Court tariff or, where neither is appropriate, at reasonable rates.

TABLE TO CONVEYANCING TARIFF

A	B
Fee for conveyance of immovable property	*Fee for mortgage bond*
3% of the purchase price or value of the property to be paid in the currency of the transaction.	2.5% of the amount of the debt secured by the bond to be paid in the currency of the transaction.